

Court No. - 32

Case :- WRIT - C No. - 38473 of 2019

Petitioner :- Sandesh Saini

Respondent :- State Of U.P. And 05 Others

Counsel for Petitioner :- Rajesh Kumar Pandey

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following relief:

"(i) Issue a writ, quash the impugned citation of recovery dated 03.08.2019 passed by respondent no. 5 (Annexure No. 1 to this writ petition) issued for recovery of Electricity dues under the provision of U.P. Govt. Electrical Undertaking (Dues Recovery) Act, 1958 by respondent no. 4."

Heard learned counsel for the petitioner, Mr. Rajesh Yadav, learned counsel appearing on behalf of the Electricity Department and perused the record.

At the very outset, learned counsel appearing on behalf of the Electricity Department has stated that the petitioner has got an alternative remedy under Clause 6.5 of the U.P. Electricity Supply code, 2005 to ventilate his grievance.

The learned counsel for the petitioner has not been able to rebut the contention made by the learned counsel for the Electricity Department.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the concerned

authority for redressal of his grievance within 15 days from today, his application may be considered and decided by the said authority in accordance with law within a period of 30 days thereafter.

For a period of 45 day, the impugned recovery notice dated 03.08.2019 issued by the Electricity Department shall remain in abeyance.

It is made clear that this Court has not expressed any opinion with regard to the merit of the case. The authority concerned shall consider the matter on its own merits.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 28.11.2019

Arun